the back of the identity tags found on the dead terrorists. Pretty convenient. *Lost Kitten*! *Call Mom at 9811489429.* (It's worth mentioning that normal procedure requires evidence gathered at the scene of a crime to be sealed. The ID cards were never sealed and remained in the custody of the police and could have been tampered with at any time.)

The only evidence the police have that 9811489429 was indeed Afzal's number, is Afzal's confession, which as we have seen is *no* evidence at all. The SIM card has never been found. The Police produced a prosecution witness, Kamal Kishore, who identified Afzal and said that he had sold him a Motorola phone and a SIM card on 4 December 2001. However, the call records that the prosecution relied on show that that particular SIM card was already in use on 6 November, *a whole month before Afzal* is *supposed to have bought it!* So either the witness is lying, or the call records are false. The high court glosses over this discrepancy by saying that Kamal Kishore had only said that he sold Afzal a SIM card, not *this* particular SIM card. The Supreme Court judgment loftily says, 'The SIM card should necessarily have been sold to Afzal prior to 4.12.2001.' And that, my friends, is that.

Consider the **Identification of the Accused:** A series of prosecution witnesses, most of them shopkeepers, identified Afzal as the man to whom they had sold various things: ammonium nitrate, aluminium powder, sulphur, a Sujata mixy-grinder, packets of dry fruit and so on. Normal procedure would require these shopkeepers to pick Afzal out from a number of people in a Test Identification Parade. This didn't happen. Instead, Afzal was identified by them when he 'led' the police to these shops while he was in police custody, and introduced to the witnesses as an Accused in the Parliament Attack. (Are we allowed to speculate about whether *he* led the police or the police led *him* to the shops? After all, he was still in their custody, still vulnerable to torture. If his confession under these circumstances is legally suspect, then why not all of this?)

The judges have pondered the violation of these procedural norms but have not taken them very seriously. They said that they did not see why ordinary members of the public would have reason to falsely implicate an innocent person. But does this hold true, given the orgy of media propaganda that ordinary members of the public were subjected to, particularly in this case? Does this hold true, if you take into account the fact that ordinary shopkeepers, particularly those who sell electronic goods without receipts in the 'grey market', are completely beholden to the Delhi Police?